

ALITO, J., dissenting

sex. The Court draws a distinction between things that are “inextricably” related and those that are related in “some vague sense.” *Ante*, at 660–661. Apparently the Court would graft onto Title VII some arbitrary line separating the things that are related closely enough and those that are not.¹⁶ And it would do this in the name of high textualism.

An additional argument made in passing also fights the text of Title VII and the policy it reflects. The Court proclaims that “[a]n individual’s homosexuality or transgender status is not relevant to employment decisions.” *Ante*, at 660. That is the policy view of many people in 2020, and perhaps Congress would have amended Title VII to implement it if this Court had not intervened. But that is not the policy embodied in Title VII in its current form. Title VII prohibits discrimination based on five specified grounds, and neither sexual orientation nor gender identity is on the list. As long as an employer does not discriminate based on one of the listed grounds, the employer is free to decide for itself which characteristics are “relevant to [its] employment decisions.” *Ibid.* By proclaiming that sexual orientation and gender identity are “not relevant to employment decisions,” the Court updates Title VII to reflect what it regards as 2020 values.

The Court’s remaining argument is based on a hypothetical that the Court finds instructive. In this hypothetical, an employer has two employees who are “attracted to men,” and “*to the employer’s mind*” the two employees are “materially identical” except that one is a man and the other is a woman. *Ibid.* (emphasis added). The Court reasons that if

¹⁶ Notably, Title VII itself already suggests a line, which the Court ignores. The statute specifies that the terms “because of sex” and “on the basis of sex” cover certain conditions that are biologically tied to sex, namely, “pregnancy, childbirth, [and] related medical conditions.” 42 U. S. C. § 2000e(k). This definition should inform the meaning of “because of sex” in Title VII more generally. Unlike pregnancy, neither sexual orientation nor gender identity is biologically linked to women or men.